PROPERTY MANAGEMENT AGREEMENT

Northgate Station District | Buffalo, NY

Owner	Northgate Station District Owner LLC
Manager	Harbor Point Management Group
Property	Northgate Station District, 3432 Maple Parkway, Buffalo, NY 44709
Agreement Date	June 28, 2020

1. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

3. Management Fee. Manager shall receive a monthly management fee equal to 6.2% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

7. Spending Authority. Manager may incur expenses not exceeding $375,000 individually without Owner approval, except in an emergency threatening life or property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

8. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

9. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

10. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

11. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

12. Management Fee. Manager shall receive a monthly management fee equal to 3.9% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

13. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

14. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

15. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

16. Spending Authority. Manager may incur expenses not exceeding $31,000 individually without Owner approval, except in an emergency threatening life or property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

17. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

18. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Time is of the essence with respect to each and every provision of this instrument.

19. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

20. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

21. Management Fee. Manager shall receive a monthly management fee equal to 3.3% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

22. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

23. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

24. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

25. Spending Authority. Manager may incur expenses not exceeding $334,000 individually without Owner approval, except in an emergency threatening life or property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

26. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

27. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

28. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

29. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

30. Management Fee. Manager shall receive a monthly management fee equal to 4.3% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

31. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

32. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

33. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

34. Spending Authority. Manager may incur expenses not exceeding $189,000 individually without Owner approval, except in an emergency threatening life or property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

35. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

36. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

37. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

38. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

39. Management Fee. Manager shall receive a monthly management fee equal to 3.5% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

40. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

41. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

42. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

43. Spending Authority. Manager may incur expenses not exceeding $179,000 individually without Owner approval, except in an emergency threatening life or property. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

44. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

45. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

46. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

47. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

48. Management Fee. Manager shall receive a monthly management fee equal to 6.3% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

49. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

50. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

51. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

52. Spending Authority. Manager may incur expenses not exceeding $204,000 individually without Owner approval, except in an emergency threatening life or property. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

53. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

54. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

55. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

56. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

57. Management Fee. Manager shall receive a monthly management fee equal to 4.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

58. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

59. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

60. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

61. Spending Authority. Manager may incur expenses not exceeding $309,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

62. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

63. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

64. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

65. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

66. Management Fee. Manager shall receive a monthly management fee equal to 6.4% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

67. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

68. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

69. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

70. Spending Authority. Manager may incur expenses not exceeding $365,000 individually without Owner approval, except in an emergency threatening life or property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

71. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

72. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

73. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

74. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Time is of the essence with respect to each and every provision of this instrument.

75. Management Fee. Manager shall receive a monthly management fee equal to 7.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

76. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

77. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

78. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

79. Spending Authority. Manager may incur expenses not exceeding $368,000 individually without Owner approval, except in an emergency threatening life or property. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Time is of the essence with respect to each and every provision of this instrument.

80. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

81. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

82. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

83. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

84. Management Fee. Manager shall receive a monthly management fee equal to 6.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

85. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

86. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

87. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

88. Spending Authority. Manager may incur expenses not exceeding $222,000 individually without Owner approval, except in an emergency threatening life or property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

89. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

90. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

91. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

92. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

93. Management Fee. Manager shall receive a monthly management fee equal to 6.2% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

94. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

95. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

96. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

97. Spending Authority. Manager may incur expenses not exceeding $129,000 individually without Owner approval, except in an emergency threatening life or property. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

98. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

99. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

100. Appointment. Owner appoints Manager as the exclusive managing agent of Northgate Station District, and Manager accepts the appointment under the terms of this Agreement. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

101. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

102. Management Fee. Manager shall receive a monthly management fee equal to 4.5% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

103. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

104. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

105. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only